REMARKS ON PENITENTIARY HOUSES

"THE Act for establishing penitentiary houses, drawn up by two of the wisest men this kingdom has produced,[1] was 'a work of long and continued labour and inquiry,' and the legislature fully expressed their wise and humane sentiments in the following terms; 'that if many offenders convicted of crimes for which transportation has been usually inflicted, were ordered to solitary imprisonment, accompanied by well regulated labour, and religious instruction, it might be the means, under Providence, not only of deterring others from the commission of the like crimes, but also of reforming the individuals, and inuring them to habits of industry.'[2] Such a great and comprehensive plan

Divine Providence, and believing myself in the way of my duty, I visit the most infectious hospitals and noxious cells; and while thus employed, I fear no evil. However, I seldom enter a hospital or prison before breakfast; in an offensive room I avoid drawing my breath deeply; and on my return sometimes wash my mouth and hands."

[1] Blackstone and Eden.—[Ed.]

[2] "As I have formerly published, in a table, the number of criminals delivered from Newgate to be transported, in the years 1773, 1774, 1775, I shall here take the liberty of copying, at the end of this work, from the appendix to the draft of a Bill for erecting penitentiary houses, 'the lists in the House of Commons, of all persons, who between the first day of November, 1769, and the first day of November, 1776, had, within any jurisdiction of England and Wales, been ordered for transportation, in consequence of conditional pardons or otherwise: which lists were returned to the House pursuant to a motion for that purpose of 8 November, 1776.' Upon these lists the following observation is added: 'The annual average of persons sentenced to transportation during the seven years above specified appears to have been nine hundred and sixty; and this number is less by near one half than would probably be found in similar lists for the seven years preceding: for the judges had already seen strong objections to transportation, and had discouraged the use of it, as far as was compatible with the public convenience and safety.' I perfectly concur in opinion, with a great and learned writer whom I have already quoted: 'That every effect of banishment, as practised in England, is often beneficial to the criminal, and always injurious to the community.'—*Principles of Penal Law*, page 33.

"I here copy one or two receipts of contractors which I have by me, showing that persons who have money may buy off their servitude.

"'Received 29 April, 1774, of R——d W——ff for his passage to, and for his freedom in Maryland, notwithstanding he dares not return from thence till the limited time of his transportation is expired.

"'*Moses Israel Fonseca.*'"

"'LONDON, 30 *April*, 1774, ASTON HALL.

"'Received of Mr. R——d L——h the sum of four pounds, four shillings, for the freedom and accommodation on their passage, on board the above ship to Baltimore, Maryland.

R——d W——ffe .	£2	2	0
W——m A——n .	2	2	0
	4	4	0

John Parker.'"

will necessarily require alterations and amendments; but I well remember the good Judge Blackstone saying to me, 'Let it get into the house, and a beginning be made.'

"I will therefore take the liberty to suggest, that there are some things in the Act which it may be proper to alter. The time for which some of the convicts are to be committed to the intended penitentiary houses, viz. some one year, some two years. Such criminals seem more proper for the county houses of correction: for is it possible to think of any reformation in a convict's behaviour, that is likely to prove lasting, in the compass of a year? I could wish to have all such as are not to remain in a penitentiary house five years, at least, disposed of in some other manner.

"The term Penitentiary clearly shows that Parliament had chiefly in view the reformation and amendment of those to be committed to such places of confinement.

"To these houses, however, I should wish that none but old, hardened offenders, and those who have, as the laws now stand, forfeited their lives by robbery, house-breaking, and similar crimes, should be committed; or in short, those criminals who are to be confined for a long term, or for life. I wish that no persons might suffer capitally but for murder, for setting houses on fire, and for house-breaking, attended with acts of cruelty. Our present laws are certainly too sanguinary, and are therefore ill executed; which last circumstance, by encouraging offenders to hope that they may escape punishment, even after conviction, greatly tends to increase the number of crimes. Yet many are brought to a premature end, who might have been made useful to the state. Indeed, I the more earnestly embarked in the scheme of erecting penitentiary houses, from seeing cartloads of our fellow-creatures carried to execution, 'though the generous nature of our countrymen rarely permits them to perpetrate acts of cruelty,' when at the same time I was fully persuaded that many of those unhappy wretches, by regular, steady discipline in a penitentiary house, would have been rendered useful members of society; and above all, from the pleasing hope, that such a plan might be the means of promoting the salvation of some individuals; of which, every instance is, according to the unerring word of truth, a more important object, than the gaining of the whole world.

"The penitentiary houses I would have built, in a great measure, by the convicts. I will suppose that a power is obtained from Parliament to employ such of them as are now